

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

CASE OF BELONOGIY AND OTHERS v. RUSSIA

(Applications nos. 5106/18 and 19 others –
see appended list)

JUDGMENT

STRASBOURG

11 May 2023

This judgment is final but it may be subject to editorial revision.



In the case of Belonogiy and Others v. Russia,

The European Court of Human Rights (Second Section), sitting as a Committee composed of:

Lorraine Schembri Orland*, President*,
Frédéric Krenc,
Davor Derenčinović*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 13 April 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as participants of public assemblies, namely the dispersal of these assemblies, as well as their arrest followed by their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention. Some applicants also invoked Article 10; however, these complaints fall to be examined under Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia* (no. 74568/12, ECHR 2016 (extracts)), *Navalnyy and Yashin v. Russia* (no. 76204/11, 4 December 2014) and *Kasparov and Others v. Russia* (no. 21613/07, 3 October 2013), the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it and having taken into account the issue of compliance with the six-month time-limit under Article 35 § 1 of the Convention (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID-related extension of the period in question), the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in its case-law (see *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 121-23,

10 April 2018, *Kalyapin v. Russia*, no. 6095/09, § 76, 23 July 2019, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, concerning various aspects of unlawful deprivation of liberty of the organisers or participants of public events; *Teslenko and Others v. Russia*, nos. 49588/12 and 3 others, §§ 72-74 and 81-82, 5 April 2022, concerning in particular administrative escorting to and/or detention in a police station beyond three hours for non-custodial offences; *Karelin v. Russia*, no. 926/08, 20 September 2016, concerning examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Federal Code of Administrative Offences (CAO); *Novikova and Others v. Russia*, nos. 25501/07 and 4 others, §§ 106-215, 26 April 2016, concerning disproportionate measures against solo-demonstrators; *Elvira Dmitriyeva v. Russia*, nos. 60921/17 and 7202/18, §§ 74-90, 30 April 2019, concerning conviction for an administrative offence for calling on the public to participate in an unauthorised public event; *Tsvetkova and Others*, cited above, §§ 179-91, and *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, concerning lack of suspensive effect of an appeal under the CAO).

V. REMAINING COMPLAINTS

13. Having regard to its findings above, the Court does not consider it necessary to examine separately the remaining complaints raised by some of the applicants under Article 6 of the Convention about the fairness of the administrative-offence proceedings in their cases.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

14. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

15. Regard being had to the documents in its possession and to its case-law (see *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table and dismisses the remainder of the applicants' claims for just satisfaction.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints concerning the dispersal of the public assemblies and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible and *decides* that there is no need to examine separately the remaining complaints under Article 6 of the Convention about other aspects of the fairness of the administrative-offence proceedings;

4. *Holds* that these complaints disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points;

7. *Dismisses* the reminder of the applicants' claims for just satisfaction.

Done in English, and notified in writing on 11 May 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Lorraine Schembri Orland President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Charges under CAO	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage (in euros)[1]
1.	5106/18 18/01/2018 and 18722/20 30/03/2020	**Denis Aleksandrovich BELONOGIY** 1990	Terekhov Konstantin Ilyich Melburn Pomazuyev Aleksandr Yevgenyevich Vilnius Zhdanov Ivan Yuryevich Vilnius	Anti-corruption manifestation Moscow 26/03/2017 Manifestation for fair elections to Mosgorduma Moscow 03/08/2019 Manifestation in support to A. Navalnyy Moscow 23/01/2021	Article 20.2 § 5 of CAO Article 20.2 § 5 of CAO Article 20.2 § 5 of CAO	fine of RUB 15,000 fine of RUB 20,000 fine of RUB 10,000	Moscow City Court 26/07/2017 Moscow City Court 16/12/2019 Moscow City Court 03/08/2021	Art. 5 (1) – unlawful deprivation of liberty: 1) escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.30 p.m. to 9.45 p.m. on 26/03/2017, 2) escorting to a police station for the purpose of drawing up a record of administrative offence, while it was not explained why the said protocol could not have been drawn on the spot: - from 3.10 p.m. to 6.00 p.m. on 03/08/2019, - from 3.30 p.m. on 23/01/2021 to an unspecified time; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings – final decisions: Moscow City Court, 26/07/2017, 16/12/2019 and 03/08/2021	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Charges under CAO	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage (in euros)[1]
2.	10666/19 11/02/2019	**Mikhail Vladimirovich SVETOV** 1985	Zhdanov Ivan Yuryevich Vilnius	Manifestation against the pension reform St Petersburg 09/09/2018 Manifestation for fair elections to Mosgorduma Moscow 16/07/2019	Article 20.2 § 6.1 of CAO Article 20.2 § 8 of CAO	administrative detention of 10 days administrative detention of 30 days	St Petersburg City Court 12/09/2018 Moscow City Court 02/08/2019	Art. 5 (1) – unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances"; the applicant remained in detention even after the record of administrative offence had been drawn up: 1) from 09/09/2018 to 10/09/2018, 2) from 30/07/2019 to 31/07/2019, 3) from 24/04/2021 to 26/04/2021 Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decisions: 12/09/2018, 02/08/2019 and 30/04/2021, by the St Petersburg City Court, Moscow City Court; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal: the sentence of administrative detention imposed on the applicant by the court of first instance was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO (two counts: in 2019 and 2021);	6,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Charges under CAO	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage (in euros)[1]
								Art. 10 (1) - conviction for an administrative offence for calling on the public to participate in an unauthorised public event; final decision: Moscow City Court, 30/04/2021	
3.	57/20 18/12/2019	**Tigran Arturovich MOVSESYAN** 1996	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 04/09/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.20 p.m. on 03/08/2019 to 01.29 a.m. on 04/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 04/09/2019	4,000
4.	1829/20 27/12/2019	**Artem Aleksandrovich SOLOMIN** 2001	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 10/08/2019 Manifestation in support of A. Navalnyy Moscow	Article 20.2 § 5 of CAO Article 20.2 § 5 of CAO	fine of RUB 15,000 fine of RUB 20,000	Moscow City Court 04/10/2019 Moscow City Court 19/08/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": 1) from 6.35 p.m. on 10/08/2019 to 00.25 a.m. on 11/08/2019, the time indicated in the record of the applicant's escorting was at variance with the real time of his	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Charges under CAO	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage (in euros)[1]
				31/01/2021				deprivation of liberty, while no record of the administrative arrest was drawn up, 2) from 2.40 p.m. to 7.30 p.m. on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings – final decisions: Moscow City Court 04/10/2019 and 19/08/2021	
5.	9499/20 12/02/2020	**Sofya Vladimirovna MUSTETSOVA** 1999	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow, 03/08/2019	Article 19.3 § 1 of CAO	administrative detention of 10 days	Moscow City Court 12/08/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances"; the applicant spent 3 hours in a police van before having been brought to the police station, from 5.15 p.m. on 03/08/2019 to 9.40 p.m. on 05/08/2019 when the applicant's trial started; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 12/08/2019	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Charges under CAO	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage (in euros)[1]
6.	10628/20 17/02/2020	**Dmitriy Vitalyevich TROYANOVSKIY** 1987	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 04/10/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.30 p.m. to 10.00 p.m. on 03/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 04/10/2019	4,000
7.	10844/20 05/02/2020	**Nikolay Aleksandrovich DEMENTYEV** 1994	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/3019	Article 19.3 § 1 of CAO	administrative detention of 15 days	Moscow City Court 13/08/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 6.00 p.m. on 03/08/2019 to 7.00 p.m. on 05/08/2019 when the applicant's trial started; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 13/08/2019	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Charges under CAO	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage (in euros)[1]
8.	11044/20 07/02/2020	**Anton Aleksandrovich FROLOV** 1990	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 30/09/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 30/09/2019	3,500
9.	11062/20 07/02/2020	**Arseniy Sergeyevich KULIKOV** 1996	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 24/10/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.25 p.m. on 03/08/2019 to 00.30 a.m. on 04/08/2019; the time indicated in the record of the applicant's escorting was at variance with the real time of his deprivation of liberty (raised on appeal); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 24/10/2019	4,000
10.	11084/20 07/02/2020	**Aleksey Aleksandrovich IVLEV** 1990	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 04/09/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence, from 5.50 p.m. to 8.10 p.m. on 03/08/2019, it was not explained why the record of administrative	3,500

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								offence could not have been drawn on the spot; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 04/09/2019	
11.	11578/20 07/02/2020	**Ivan Aleksandrovich OSTAPCHUK** 1993	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 14/11/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 5.55 p.m. to 11.50 p.m. on 03/08/2019, while the record of administrative offence was drawn up only on 06/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 14/11/2019	4,000
12.	12211/20 27/02/2020	**Roman Valeryevich VORONIN** 1987	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 06/09/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.40 p.m. on 03/08/2019 to	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Charges under CAO	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage (in euros)[1]
								01.40 a.m. on 04/08/2019, while the record of administrative offence was drawn up only on 06/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 06/09/2019	
13.	12435/20 22/02/2020	**Aleksey Aleksandrovich FEDOSIMOV** 1984	Glukhov Aleksey Vladimirovich Novocheboksarsk	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 26/08/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence, from 4.50 p.m. to an unspecified time on 03/08/2019, it was not explained why the record of administrative offence could not have been drawn on the spot; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 26/08/2019	3,500
14.	19565/20 23/03/2020	**Andrey Vladimirovich KASHURIN** 1990	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 22/10/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 5.40 p.m. on 03/08/2019 to	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Charges under CAO	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage (in euros)[1]
								01.00 a.m. on 04/08/2019, while the record of administrative offence was drawn up only on 06/08/2019; the applicant spent more than 3 hours in the police van before having been brought to the police station; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 22/10/2019	
15.	19609/20 25/03/2020	**Kirill Alekseyevich LIPATOV** 1990	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 02/12/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.00 p.m. on 03/08/2019 to 00.30 a.m. on 04/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 02/12/2019	4,000
16.	19610/20 16/03/2020	**Boris Mikhaylovich STARKOV** 2000	Bayturina Svetlana Nikolayevna Moscow	Manifestation for fair elections to Mosgorduma Moscow	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 18/09/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Charges under CAO	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage (in euros)[1]
				03/08/2019				in excess of 3 hours and without "exceptional circumstances", from 4.30 p.m. to 8.00 p.m. on 03/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 18/09/2019	
17.	25986/20 14/04/2020	**Andrey Sergeyevich KAZHANOV** 1985	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 06/12/2019	Art. 5 (1) – unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence, from 6.10 p.m. on 03/08/2019 to an unspecified time; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 06/12/2019	4,000
18.	26632/20 05/06/2020	**Yevgeniy Erlenovich BOLSHAKOV** 1968	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019 Manifestation against the war in Ukraine	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 14/11/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", - from 6.00 p.m. on 03/08/2019 to an unspecified time,	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Charges under CAO	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage (in euros)[1]
				Moscow 13/03/2022	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 05/08/2022	- from 1.05 p.m. to 9.48 p.m. on 13/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings – final decisions: Moscow City Court, 05/08/2022 and 14/11/2019	
19.	33795/20 31/07/2020	**Aleksandr Viktorovich TOKMAKOV** 1998	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 12/03/2020	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 6.00 p.m. on 03/08/2019 to 02.00 a.m. on 04/08/2019, while the record of administrative offence was drawn up only on 06/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 12/03/2020	4,000

[1] Plus any tax that may be chargeable to the applicants.